

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Melany Rivas	Team: Squad #09	CCRB Case #: 202301978	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/07/2023 11:46 PM	Location of Incident: In front of 3778 Broadway	18 Mo. SOL 9/7/2024	Precinct: 33		
Date/Time CV Reported Tue, 03/07/2023 11:54 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Wed, 03/08/2023 6:04 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Benjamin Roman	07119	955410	033 PCT
2. PO Raymond Perez	07205	970770	033 PCT
3. PO Christian Anasa	14741	967422	033 PCT
4. PO Joshua Moscoso	11260	960976	033 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Christian Anasa	Abuse: Police Officer Christian Anasa interfered with § 87(2)(b) use of a recording device.	A . Unfounded
B . PO Raymond Perez	Abuse: Police Officer Raymond Perez interfered with § 87(2)(b) use of a recording device.	B . Unfounded
C . PO Christian Anasa	Abuse: Police Officer Christian Anasa threatened to arrest § 87(2)(b)	C . Unfounded
D . PO Raymond Perez	Abuse: Police Officer Raymond Perez threatened to arrest § 87(2)(b)	D . Unfounded
E . PO Benjamin Roman	Abuse: Police Officer Benjamin Roman interfered with § 87(2)(b) use of a recording device.	E . Unfounded
F . PO Benjamin Roman	Abuse: Police Officer Benjamin Roman threatened to arrest § 87(2)(b)	F . Unfounded
G . PO Benjamin Roman	Abuse: Police Officer Benjamin Roman refused to provide his name to § 87(2)(b)	G . Unfounded
H . PO Benjamin Roman	Abuse: Police Officer Benjamin Roman refused to provide his shield number to § 87(2)(b)	H . Unfounded
I . PO Benjamin Roman	Abuse: Police Officer Benjamin Roman detained § 87(2)(b)	I . Substantiated
J . PO Benjamin Roman	Abuse: Police Officer Benjamin Roman threatened to seize § 87(2)(b) property.	J . Substantiated
K . PO Joshua Moscoso	Abuse: Police Officer Joshua Moscoso issued a retaliatory summons to § 87(2)(b)	K . Substantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

On March 7, 2023, § 87(2)(b) filed the following complaint in person at the 33rd Precinct stationhouse. This complaint was then received at the CCRB on March 8, 2024.

On March 7, 2023, at 11:46 p.m., § 87(2)(b) parked his vehicle in front of 3778 Broadway, in Manhattan. Police Officers Raymond Perez and Christian Anasa of the 33rd Precinct stopped, interfered with § 87(2)(b) use of a recording device, and threatened to arrest § 87(2)(b) (**Allegations A through D: Abuse of Authority, Unfounded**). PO Benjamin Roman interfered with § 87(2)(b) recording, threatened to arrest § 87(2)(b) and refused to provide his name and shield to § 87(2)(b) (**Allegations E through H: Abuse of Authority, Unfounded**). After PO Anasa ended the interaction with § 87(2)(b) PO Roman detained him again, and threatened to seize § 87(2)(b) vehicle (**Allegations I and J: Abuse of Authority, Substantiated**). PO Moscoso issued § 87(2)(b) a summons in retaliation (**Allegation K: Abuse of Authority, Substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b) was issued a summons for parking on a crosswalk. No other summons or arrest resulted from this incident (Board Review 12).

Six body-worn camera videos (BWC) (Board Review 05) and two cellphone (Board Review 14-15) videos were for this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Christian Anasa interfered with § 87(2)(b) use of a recording device.

Allegation (B) Abuse of Authority: Police Officer Raymond Perez interfered with § 87(2)(b) use of a recording device.

Allegation (C) Abuse of Authority: Police Officer Christian Anasa threatened to arrest § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Raymond Perez threatened to arrest § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Benjamin Roman interfered with § 87(2)(b) use of a recording device.

Allegation (F) Abuse of Authority: Police Officer Benjamin Roman threatened to arrest § 87(2)(b)

The following facts are not disputed. On March 7, 2023, at 11:46 p.m., § 87(2)(b) parked his grey 2014 Mercedes Benz CLA 250 on the crosswalk in front of 3778 Broadway, in Manhattan and got food at a nearby restaurant. PO Perez and PO Anasa, identified via investigation, pulled up in front of § 87(2)(b) as he attempted to enter his vehicle, and requested that § 87(2)(b) provide his identification. § 87(2)(b) provided his ID and began to record on his cellphone but was instructed to keep his hands visible.

PO Anasa's BWC shows the officers pulling up next to § 87(2)(b) as he opens his driver's side door. The officers exit and approach § 87(2)(b) who is standing by his driver's side. At the time, § 87(2)(b) vehicle is running, has dark window tints, and is parked on a crosswalk. The officers instruct § 87(2)(b) to provide his ID, and he asks why. At 01:06, PO Perez and PO Anasa inform § 87(2)(b) that his vehicle is parked on a crosswalk and has tinted windows. § 87(2)(b) informs the officers that his vehicle is parked, and that they can issue him tickets for the violations without his ID. At 01:29, PO Anasa says to § 87(2)(b) "Do you have ID. If not, we can bring you back to the station." At 02:07, § 87(2)(b) gives his ID to PO Anasa, and begins to record on his cellphone. At 2:12, PO Anasa tells § 87(2)(b) "Do me a favor, you are allowed to record, but for my safety I don't want anything

in your hands.” § 87(2)(b) rests the camera on a takeout container that’s on top of the roof of the vehicle. PO Anasa then asks § 87(2)(b) if he parked on the crosswalk as a result of any emergency. § 87(2)(b) replies, “You guys watched me come from somewhere.” At 03:00, PO Roman and PO Moscoso arrive on scene. At 03:53, § 87(2)(b) vehicle headlights appear to be activated. At 04:35, PO Anasa hands § 87(2)(b) ID to PO Moscoso. At 04:50, § 87(2)(b) tells PO Anasa and PO Perez, “You guys telling me I can’t even record you guys.” PO Anasa replies, “We didn’t say that.... I am allowed for my safety to tell you not to have anything in your hands.” § 87(2)(b) says he doesn’t understand what is going on because the car is parked. PO Anasa asks, “So you don’t have the car running?” § 87(2)(b) does not respond. At 07:15, PO Anasa informs § 87(2)(b) that he needs to be identified before a summons can be issued for a moving violation. § 87(2)(b) and PO Moscoso argue about whether § 87(2)(b) can record. At 08:07, PO Anasa returns § 87(2)(b) ID, and instructs him to get the tints fixed and move the vehicle from the crosswalk. PO Anasa walks away and deactivates his camera (Board Review 08).

PO Perez, PO Roman, and PO Moscoso’s BWC all captured the entirety of this incident, but from different angles, and at no point does their footage depict any officer threatening to arrest § 87(2)(b) nor does it depict officers instructing or interfering with § 87(2)(b) cellphone recording of the incident (Board Review 05).

The two cellphone videos § 87(2)(b) provided were consistent with the BWC and do not depict any officer threatening to arrest § 87(2)(b) nor do they depict officers interfering with his use of the recording device (Board Review 14- 15).

§ 87(2)(b) acknowledged parking his vehicle on the crosswalk and said that his vehicle only had a rear license plate, no front plate, and factory tints on all windows. He said he parked in order to get food from a fast-food restaurant, and that PO Anasa, PO Perez, and PO Roman all told him that he would be arrested if he continued to record on his cellphone.

Patrol Guide Procedure 203-29, individuals have a right to lawfully record police activity including, but not limited to detentions, searches, arrests, or uses of force; however, the right to record police action can be limited when a violation of law is committed by the individual who is videotaping (Board Review 06).

BWC and § 87(2)(b) own cellphone videos all contradict § 87(2)(b) account that the officers instructed him to stop recording on his cellphone and threatened to arrest him if he did not comply with their orders to stop recording. Rather, the videos show officers informing § 87(2)(b) that he could record but could not have the phone in his hands for safety reasons § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegations A through F** be closed as **Unfounded**.

Allegation (G) Abuse of Authority: Police Officer Benjamin Roman refused to provide his name to § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Benjamin Roman refused to provide his shield number to § 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Benjamin Roman detained § 87(2)(b)

Allegation (J) Abuse of Authority: Police Officer Benjamin Roman threatened to seize § 87(2)(b) property.

Allegation (K) Abuse of Authority: Police Officer Joshua Moscoso issued a retaliatory

summons to § 87(2)(b)

It is not disputed that PO Roman detained § 87(2)(b) and that PO Moscoso issued him a summons for parking on the crosswalk.

§ 87(2)(b) said he requested PO Roman's name and shield number as the officers walked away, and that PO Roman pointed at his shoulder and said, "It is right here." However, PO Roman was not close enough for § 87(2)(b) to read his name and shield number off his name plate, nor did PO Roman verbally provide his name and shield number to § 87(2)(b). The officers also returned to § 87(2)(b) said he could not leave, and issued him a summons for parking on the crosswalk. § 87(2)(b) said the summons was retaliatory because he only received it after he requested PO Roman's name and shield number.

PO Moscoso's BWC begins from the point he and PO Roman arrive on scene. At 05:06, PO Moscoso tells PO Anasa to instruct § 87(2)(b) to move the car and not park at a crosswalk. PO Anasa returns § 87(2)(b) ID, instructs § 87(2)(b) to get the tints fixed, and move the vehicle from the crosswalk. All four officers walk away from § 87(2)(b) vehicle. At 06:10, PO Anasa and PO Perez fully enter their vehicle, which is parked next to § 87(2)(b) and close their respective doors, while PO Moscoso and PO Roman walk to the other side of the street where their vehicle is parked. At 06:13, § 87(2)(b) appears to say, "What is your name by the way." PO Roman replies, "Roman." PO Moscoso and PO Roman then turn and begin to walk towards § 87(2)(b). At 06:30, PO Moscoso knocks on PO Anasa's driver's side window and asks PO Anasa for an "A summons." At 06:51, PO Moscoso writes § 87(2)(b) a summons, while PO Roman speaks with § 87(2)(b). At 09:29, PO Moscoso places the summons on § 87(2)(b) windshield, and walks away (Board Review 04).

PO Roman's BWC at 06:08, shows § 87(2)(b) saying something as the officers walk away, but what he says is not clearly captured on BWC, except that PO Roman replies, "Yea, it is." § 87(2)(b) then says, "What is your name by the way," which prompts PO Roman to say, "Roman." § 87(2)(b) is visible in PO Roman's footage and does not appear to throw anything on the ground. PO Roman approaches § 87(2)(b) and says to him, "We could still take your car brother, it is not over." § 87(2)(b) then attempts to open his car door, but PO Roman says to § 87(2)(b) "Wait, wait, wait where are you going? Now you stopped again. You asked me for my name, right? We got to do this the right way. My name is Roman, #7119." At 06:42, PO Roman says to § 87(2)(b) "If you want to go further, I can get a tow truck over here, I could write you for the tints, I could tow the car. We could do all of that." § 87(2)(b) tells PO Roman that he does not have a problem with PO Roman and tries to enter his vehicle. PO Roman instructs § 87(2)(b) to keep standing, and that "Now we gotta do part two since you want to play games." At 07:00, PO Roman says to § 87(2)(b) "all you had to do was go about your business." § 87(2)(b) scrolls on his phone, while PO Moscoso writes him the summons. At 07:21, PO Roman says to § 87(2)(b) "My man, you are stopped right now, and when you are stopped you stay off your phone. I can always put you in handcuffs, that's what a stop is." At 08:10, PO Roman says to § 87(2)(b) "Now after the ticket is issued, you have 30 seconds to move your car out of the crosswalk before I call a tow truck." At 09:30, PO Roman instructs § 87(2)(b) to get in his vehicle and leave shortly after PO Moscoso places the summons on § 87(2)(b) windshield.

PO Moscoso said he observed § 87(2)(b) throw something on the ground as the officers walked away, and thus prompted him to return to issue § 87(2)(b) a summons. PO Moscoso said he used his discretion to issue § 87(2)(b) the summons for the parking violation as opposed to littering and said § 87(2)(b) request for PO Roman's name and shield number did not factor into his decision to issue § 87(2)(b) the summons, nor did he consult with PO Anasa and PO Perez before issuing § 87(2)(b) the summons (Board Review 10).

PO Roman approached § 87(2)(b) a second time in order to provide him with his name and shield, and said he further detained § 87(2)(b) because he heard PO Moscoso ask PO Anasa for a parking summons. PO Roman's understanding is that an individual must be stopped prior to them being issued a summons and was thus the reason why he detained § 87(2)(b). PO Roman did not recall threatening to tow § 87(2)(b) vehicle, and said his comments captured in the BWC were only to inform § 87(2)(b) of the consequences of leaving a vehicle unattended on a crosswalk (Board Review 09).

BWC shows PO Roman verbally providing his name and shield number to § 87(2)(b) and thus contradicts § 87(2)(b) account that the officer did not provide his name and shield number upon request. As such, it is therefore recommended that **Allegations G and H** be closed as **Unfounded**.

People v. DeBour 40 NY 2D 210 (1976): Officers can stop an individual if they have reasonable suspicion that the individual has committed, is committing, or about to commit a crime (Board Review 19).

Patrol Guide Procedure 209-07 outlines the proper manner to issue a parking summons when an officer encounters an unoccupied vehicle on a public highway that is illegally parked or in violation of some provision of the New York City Traffic Rules. The procedure states that officers are to specify the location of the violation and use the vehicle registration sticker as the primary source of information in completing the ticket. The procedure does not state that a civilian's identification is necessary in order to complete the ticket (Board Review 16).

NYC Administrative Code Section 4-08 Parking, Stopping, standing: No person shall stop, stand, or park an attended or unattended vehicle on a crosswalk (Board Review 07).

New York Vehicle and Traffic Law § 4-08 states, that any illegally parked vehicle found parked at any time upon any public highway in the City may, by or under the direction of any person authorized by the Commissioner, be immobilized in such manner as to prevent its operation, and thereafter may be removed to a tow pound as provided in these rules (Board Review 13).

Administrative Guide 304-06 states that members of service are prohibited from engaging in conduct prejudicial to good order (Board Review 17).

The BWC does not depict § 87(2)(b) littering or throwing anything on the ground while the officers walked away, and thus contradicts PO Moscoso's reason for approaching § 87(2)(b) the second time. The footage rather shows PO Moscoso and PO Roman approaching § 87(2)(b) and issuing him the parking summons shortly after § 87(2)(b) requested PO Roman's name, and again further shows PO Roman informing § 87(2)(b) that he was being "stopped again" because he had requested PO Roman's name. At no point does the footage depict PO Roman or PO Moscoso informing § 87(2)(b) that he was stopped for littering, nor are they depicted providing any other reason for approaching § 87(2)(b) the second time. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegations I through K** be closed as **Substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 21).
- PO Perez has been a member of the service for three years and has been the subject of seven CCRB complaints and 13 allegations, none of which were substantiated. § 87(2)(g)
- PO Anasa has been a member of the service for five years and has been the subject of fourteen CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)
- PO Roman has been a member of service for 10 years and has been the subject in 14 CCRB complaints and 33 allegations, of which four were substantiated:
 - 202101083 involved a substantiated allegation of Abuse - Refusal to process civilian complaint against PO Roman. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A).
 - 202207278 involved a substantiated allegation of Abuse - Improper use of body-worn camera. The Board recommended Command Discipline A and the NYPD have not come to a determination as of the time of this report.
 - 202300412 involved substantiated allegations of Abuse - Failure to provide RTKA card and Abuse - Frisk. The Board recommended Command Discipline A and the NYPD have not come to a determination as of the time of this report.
 - § 87(2)(g)
- PO Moscoso has been a member of service for eight years and has been a subject in 23 CCRB complaints and 68 allegations, of which one was substantiated:
 - 202205105 involved a substantiated allegation of Abuse - Threat to damage/seize property against PO Moscoso. The Board recommended Command Discipline B and the NYPD imposed no penalty.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- On May 9, 2023, this case was sent to mediation per § 87(2)(b) request. On June 30, 2023, the case was returned to investigations as § 87(2)(b) stated that he wanted the case investigated.
- As of December 14, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim filed by § 87(2)(b) with the New York City Comptroller's Office relevant to the date and address of the incident (Board Review 01).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 9 _____

Investigator:	Melanyn Rivas _____	Investigator Melanyn Rivas _____	05/17/2024 _____
	Signature	Print Title & Name	Date

Squad Leader:	Enoch Sowah _____	_____ _____	05/17/2024 _____
	Signature	Print Title & Name	Date

Reviewer:	_____ _____	_____ _____	_____ _____
	Signature	Print Title & Name	Date